

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**-----X
APRIL HAMMITT,

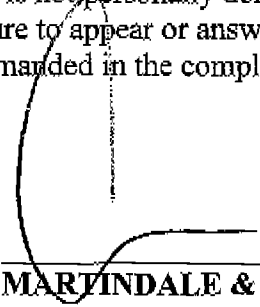
Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. STEVEN CRUVER (SHIELD #11884)**Defendant.

-----X**Index No.** _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 12, 2018
MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

POLICE OFFICER STEVEN CRUVER (SHEILD # 11884)

44th PRECINCT

2 E. 169th Street

Bronx, NY 10452

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
APRIL HAMMITT

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK
P.O. STEVEN CRUVER (SHIELD #11884)
Defendant.**

=====X

Plaintiff APRIL HAMMITT., by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers mentioned herein, including Defendant P.O. STEVEN CRUVER (hereinafter "CRUVER") were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff APRIL HAMMITT (hereinafter "HAMMITT") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 10:30pm on November 18, 2016, in and around 1235 Grand Concourse, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. In the evening of November 18, 2016, HAMMITT and her boyfriend, Mr. Jason Carter, were driving to Mr. Carter's home after just having come from a dinner date at City Island.
10. At approximately 10:30pm that evening, HAMMITT pulled over her vehicle in the vicinity of 1235 Grand concourse after an unmarked police car flashed their lights.
11. Shortly after pulling over, two NYPD officers, including CRUVER exited the vehicle and approached HAMMITT'S vehicle.
12. There, at least 5 NYPD officers, including CRUVER jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested HAMMITT, using excessive force in the process.
13. CRUVER arrested HAMMITT intentionally, and HAMMITT at all times was aware he was being arrested and did not consent to being arrested.
14. Before, during, and after the illegal seizure described in paragraph 12, CRUVER used excessive force against HAMMITT, injuring her person, slamming her onto the concrete sidewalk, injuring her left knee.
15. After arresting and handcuffing HAMMITT, officers escorted her to the 44th Precinct.

16. HAMMITT was placed in a cell inside the 44th Precinct for approximately 5 hours before being taken to Lincoln Hospital and then eventually to central booking in Bronx County.
17. Approximately twenty four hours after she was arrested, HAMMITT was arraigned and bail was set.
18. Unable to initially afford bail, HAMMITT was transported to Rose M. Singer Correctional facility on Rikers Island until her eventual release on November 21, 2016.
19. After being released, HAMMITT went to North Central Bronx Hospital where her left knee injury could get further tended to.
20. As a result of being attacked and beaten by CRUVER, Plaintiff HAMMITT suffered physical injuries, including injuries to her left knee which required physical therapy to rehabilitate.
21. In addition to suffering physical injuries to his person, HAMMITT suffered emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.
23. The officers who arrested the HAMMITT, as described in paragraphs 8-21, intended to confine her.
24. HAMMITT was conscious of her confinement and did not consent to it.

Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.
26. In arresting HAMMITT as described in paragraphs 8-21, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
27. In arresting HAMMITT as described in paragraphs 8-21, the arresting NYPD officers sought either a detriment to HAMMITT or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
28. As a result of Defendants' abuse of process, HAMMITT sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION: ASSAULT

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.
30. Immediately before CRUVER arrested HAMMITT as described in paragraphs 8-21, he intentionally placed HAMMITT in apprehension of imminent harmful or offensive contact without HAMMITT's consent.

FIFTH CAUSE OF ACTION: BATTERY

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.
32. When CRUVER arrested the HAMMITT, as described in paragraphs 8-21, he wrongfully touched, grabbed, handcuffed and seized HAMMITT in an excessive

manner, subjecting HAMMITT to harmful and offensive bodily contact.

CRUVER lacked legal cause to grab, handcuff, seize or touch HAMMITT, nor did HAMMITT consent to the illegal touching, nor was the touching privileged by law.

SIXTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. Upon information and belief, when CRUVER illegally arrested and battered HAMMITT, he was at all times relevant duly appointed and acting as an officer of the City of New York Police Department.
35. At all times mentioned herein, CRUVER was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
36. HAMMITT is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. She brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
37. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
38. On or about November 18, 2016, as described in paragraphs 8-21, armed officers of the NYPD, while effectuating the seizure of HAMMITT, searched, seized, assaulted, and battered her, and grabbed the HAMMITT's person, without a court

authorized arrest or search warrant. CRUVER seized the person of HAMMITT during the arrest process in an unlawful and excessive manner. HAMMITT was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

39. The above actions of the arresting officers caused the HAMMITT to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to her person,
- (b) Freedom from battery to her person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from the use of excessive force during the arrest process.

40. CRUVER subjected the HAMMITT to such deprivations, either in a malicious or reckless disregard of the HAMMITT's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

41. The direct and proximate result of CRUVER'S acts, are that HAMMITT has suffered severe and permanent physical and psychological injuries. HAMMITT was forced to endure pain and suffering to her detriment.

SEVENTH CAUSE OF ACTION: NEGLIGENCE

42. Paragraphs 1-41 are incorporated by reference as though fully set forth herein.
43. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
44. As a result of the negligence by Defendant CITY, HAMMITT sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

EIGHTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as HAMMITT in the instant case, has not committed a crime and has not resisted arrest.
47. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as HAMMITT unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

48. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
 - (b) Force cannot be used against an individual who does not physically resist arrest.
 - (c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.
49. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

NINTH CAUSE OF ACTION: NEGLIGENT HIRING

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.
51. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff APRIL HAMMITT demands judgment against the Defendant in the sum of \$1,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

February 12, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

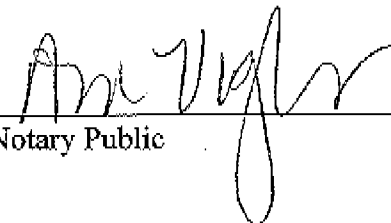
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
February 12, 2018


APRIL HAMMITT

Subscribed and sworn to before me, this 12-th day of February 2018



Notary Public

ANNAMAREE VOELKE
Notary Public - State of New York
No. 01VD4796977
Qualified in Queens County
Commission Expires Aug. 31, 20____

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

APRIL HAMMITT, JR.

Plaintiff,

- against -

**THE CITY OF NEW YORK
P.O. STEVEN CRUVER (SHIELD #11884)
Defendant.**

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
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**POLICE OFFICER STEVEN CRUVER (SHEILD #11884)
44th PRECINCT
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